

STATE OF NEW YORK

10331--A

IN ASSEMBLY

February 20, 2026

Introduced by M. of A. ANDERSON -- read once and referred to the Committee on Governmental Operations -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the executive law and the New York city charter, in relation to enacting the "Census Enumerator Navigation Safety for Unimpeded Surveying Act"

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. This act shall be known and may be cited as the "Census
2 Enumerator Navigation Safety for Unimpeded Surveying Act".

3 § 2. Legislative intent. Federal law establishes a right of access for
4 census enumerators but provides limited mechanisms for routine enforce-
5 ment, guidance, and accountability at the state and local level. This
6 act supplements federal law by establishing civil enforcement tools,
7 coordination, and transparency to ensure census access is effectively
8 implemented in New York State. To facilitate lawful access for census
9 enumerators, protect them from obstruction or harassment, and improve
10 census accuracy through state-level coordination and compliance meas-
11 ures.

12 § 3. The executive law is amended by adding a new section 171-b to
13 read as follows:

14 § 171-b. Census enumerator access. 1. During an official enumeration
15 period established by the United States Census Bureau, enumerators who
16 present valid federal-issued or state-issued credentials shall be
17 afforded reasonable access to common areas of multi-unit residential
18 buildings for the purpose of conducting authorized census activities.
19 Such access shall be granted during the days and hours enumerators are
20 authorized to make in-person inquiries for the purposes of collecting
21 census information.

22 2. (a) The office of the attorney general, in consultation with the
23 New York Regional Office of the United States Census Bureau after
24 appointment pursuant to section twenty-v of the New York City Charter,
25 shall prepare and issue guidance to building owners, managing agents,
26 and building staff regarding recognition of valid enumerator creden-

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 tials. Such guidance shall be available to the public on the website of
2 the attorney general, on the website of the New York Regional Office of
3 the United States Census Bureau, and in written form upon request.

4 (b) To the extent not in violation of federal law, the department of
5 state shall develop a voluntary state-issued verification resource or
6 training materials to assist building staff in identifying authorized
7 enumerators and reducing confusion during enumeration periods.

8 3. The attorney general shall enforce the provisions of this section.
9 Building owners or managing agents of properties whose staff or resi-
10 dents intentionally obstruct, harass, or interfere with an enumerator
11 performing the enumerator's official duties pursuant to this section
12 shall be subject to a civil penalty of up to five hundred dollars per
13 violation. Such penalty shall be in addition to any applicable federal
14 penalties. Moneys collected from such penalties shall be deposited in
15 the general fund to the credit of the New York Regional Office of the
16 United States Census Bureau to be used for education, compliance and
17 outreach activities regarding the census.

18 4. The office of the attorney general shall establish a process for
19 the filing of complaints regarding violations of this section. A listing
20 of all substantiated complaints shall be available to the public on the
21 website of the attorney general.

22 5. The attorney general is authorized to promulgate rules and regu-
23 lations necessary for the implementation of this section.

24 6. Nothing in this section shall be construed to conflict with, limit
25 or preempt federal census law or to authorize entry into individual
26 dwelling units without consent.

27 § 4. Section 20-t of the New York city charter, as added by local law
28 number 9 of the city of New York for the year 2026, is renumbered
29 section 20-v.

30 § 5. Subdivision d of section 20-v of the New York city charter, as
31 renumbered by section four of this act, is amended by adding a new para-
32 graph 6 to read as follows:

33 6. Consult with the office of the attorney general to prepare and
34 issue guidance to building owners, managing agents, and building staff
35 regarding recognition of valid enumerator credentials as provided in
36 section one hundred seventy-one-b of the executive law and make such
37 guidance available on its website.

38 § 6. Severability. If any clause, sentence, paragraph, subdivision,
39 section or part of this act shall be adjudged by any court of competent
40 jurisdiction to be invalid, such judgment shall not affect, impair, or
41 invalidate the remainder thereof, but shall be confined in its operation
42 to the clause, sentence, paragraph, subdivision, section or part thereof
43 directly involved in the controversy in which such judgment shall have
44 been rendered. It is hereby declared to be the intent of the legislature
45 that this act would have been enacted even if such invalid provisions
46 had not been included herein.

47 § 7. This act shall take effect immediately.